

INTRODUCTION

This has not been a pleasant book to research or to write. It will not be a pleasant book to read. It deals with a profoundly disturbing topic: a system of justice, designed to protect children from sexual abuse, that has gone so terribly wrong that it often abets the very evils it exists to correct. The failure of any judicial system is bad enough; the failure of the American family court system, resulting in the systematic mishandling of sex abuse charges, exposes children throughout the country to grave dangers. That is something anyone would rather not know, given the choice.

But the truth is simply too serious to ignore. If it is true—as we have found—that the American family court system, built to safeguard the welfare of children and their families, has all too often become a place where civil rights are thrust aside, where the search for truth is subordinated to “junk science,” and where children are forced into unwanted relationships with parents they have accused of sexually abusing them—while the parents who try to protect them are punished with the loss of custody—then none of us should be indifferent to family court malfunction. While the family courts treat too many mothers who believe that their children have been sexually abused as guilty until proven innocent (guilty of parental unfitness, of hysteria, of “hostility” toward the accused parent), and take away their children as a result, ignorance of the system is clearly too high a price for any of us to pay.

Indeed, the American public is already aware that something is wrong with the system that is supposed to protect our children. Over the last twenty years, the child welfare system has attracted increasing public attention and controversy. Again and again, the public has learned of astonishing judicial lapses as a result of which children are kept in the

custody of physically or sexually abusive parents—until it is too late.

Yet there has always been much more to the story than this. The public is aware that the family court system sometimes fails to protect children from sexual abuse. But it is only just becoming aware that the system may actually *place* children with sexually abusive parents because the other parent (usually the mother) is stigmatized for making the accusation in the first place. That is the phenomenon we examine in this book.

Although ours is the first book to analyze this pattern in objective detail, we are not the first to notice the evils we examine. Well over a decade ago, several researchers, including activist attorney H. Joan Pennington, coined the term “protective parent” to describe those parents, usually mothers, who engage the family court system to protect their children from alleged sexual abuse by the child’s father. In many cases, Pennington complained, these parents faced a fierce backlash from judges, law guardians, caseworkers, court-appointed mental health experts, and others.²

Pennington (now retired) founded the National Center for Protective Parents, based in Trenton, New Jersey, in 1990. Over the following six years, the center published a number of well-documented studies on the plight of mothers in the family courts. In 1992, Pennington testified before the House Judiciary Committee on how to educate judges about the protective parent problem.³ Pennington has argued that family courts not only fail, in many cases, to stop the abuse of children but actually go much further, by punishing mothers for trying to protect them.

In 1999, Kim Gandy, then-vice-president of the National Organization for Women (NOW), was moved to write to one of us that this problem cried out for legislative reform: “[T]here is a frightening trend in both the juvenile and family law courts of the United States, which is placing literally thousands of children in danger. In court cases across the county, children who have disclosed abuse by a parent . . . are being placed in the sole custody of the abusive parent. . . . Congress must be

made aware of how prevalent this problem is”

In April 2004, Kathryn Mazierski, president of the NOW chapter in New York State, echoed Gandy’s denunciation of the family courts. Mazierski, joined by other NOW state chapters and national child advocacy organizations, demanded a federal investigation of the family courts. Mazierski’s press release did not mince words: “in case after case, the mother who makes the report of sex abuse is punished—stripped by the court of her custodial rights . . . this phenomenon can be observed in so many states, and involves such profound violations of the rights of mothers and the children concerned, that a federal investigation into the Constitutional and civil rights violations of mothers caught in the family court system is the best way to seek a remedy.”

According to Mazierski, “One out of every two calls I get on a daily basis is from a mother who just lost custody because she tried to get the family court to protect her child from sexual abuse committed by the father.” Similarly, Rita Henley Jensen, editor in chief of Women’s eNews, an online daily news service reaching twenty thousand members of the press, has told one of us that “the bulk of the daily incoming emails to Women’s eNews are desperate pleas from mothers who have lost custody of their children they tried in vain to protect from sexual abuse.”⁴ This suggests that, if anything, the plight of protective parents is worsening: six years earlier, the director of the Office on Violence Against Women (OVW) of the US Department of Justice had written to one of us that at least “two calls a week” received by her office were from protective parents “desperate for assistance.”⁵

If this sounds to you like the product of judicial madness, you are not alone. During a 1997 Mother’s Day press conference held on the steps of the Capitol in Washington, DC, a devastated Georgia mother, whose contact with her five-year-old son had been completely suspended by a family court, shouted: “Family court is a bad dream that you can’t wake up from!” The other fifty mothers at the rally plainly agreed.

Our own look into the “bad dream” of the family court system be-

gan in 1986, when Dr. Amy Neustein, one of the authors of this book, lost custody of her six-year-old daughter to a man an eyewitness had accused of sexually molesting her—despite the confirming account of the girl herself and the corroboration of experts. Appalled by what she had experienced, Dr. Neustein founded the Help Us Regain The Children (HURT) research center in Brooklyn, New York, in 1986, moving the center to New York City in 1999.

HURT advertised itself to protective mothers primarily by word of mouth, as well as through local and national television talk show appearances, during which the center's address and phone number would be posted on the screen. Referrals were also made to HURT by women's organizations in New York and nationwide, and battered women's shelters listed the center's phone number as a resource in their printed literature.

The results were astonishing. HURT was contacted in well over four thousand cases. About one thousand met the study requirements set forth by HURT, which required its research subjects to provide as full a court record as possible: motion papers, court transcripts, decisions, and orders. Later, this book's other author, Michael Lesher, Esq., undertook a legal review of HURT's cases and added others from his own experience. The authors found that those cases tragically confirmed the warnings of H. Joan Pennington, Kim Gandy, and Kathryn Mazierski. Family courts really were ignoring evidence of sexual abuse and awarding custody to fathers against whom credible cases of sexual abuse had been presented.

Of those mothers who lost custody to allegedly abusive ex-husbands or former partners, the majority had been primary caretakers of their children—the main nurturers—and in a number of cases the children had been very young when they were removed from their mothers. Some had not even been weaned. Others had disabilities that made them particularly dependent on their mothers. None of these facts made any consistent difference in the results of the cases. Healthy children and

sick ones, teenagers and toddlers, all were just as likely to be removed from their mothers when allegations emerged of sexual abuse by the father.

We found that such results cut straight across the American demographic pie. Both rich and poor women lost custody of their children to alleged sex offenders, as did women at different educational levels. The judicial outcomes were largely the same in large metropolises and in rural areas.

The evidence we have collected has enabled us to demonstrate in detail—and to analyze—the backlash against protective parents that activists have complained about for decades. We offer this book as a detailed analysis of a system that has turned far too much of its energy toward the punishment, not of parents who abuse their children, but of those parents (almost always women) who reasonably suspect their spouse or partner of child sexual abuse. Just as the evidence we have amassed enables us to remove any doubt as to the reality of this problem, it has enabled us to address two important reservations sometimes voiced by skeptics. These should be dealt with at once.

First, we do not claim—nor do we believe—that the miscarriages of justice we dissect in this book characterize all family court cases across the country. But it remains true, unfortunately, that severely mishandled cases are not uncommon. As we will show, other investigations, formal and informal, have found—as we did—that far too many cases of alleged sexual abuse have ended with inexplicable punishments meted out to a mother whose “crime” was to try to protect her child from sexual abuse. And the consistency of this finding is all the more striking because court records of sex abuse cases are nearly always barred from public review, making large-scale surveys unusually difficult. The same may be said of the sheer volume of desperate calls and e-mails from bewildered protective mothers to women’s organizations and other groups.

Take the case of Childhelp USA. Founded in 1959 as a groundbreak-

ing purveyor of child abuse prevention information, Childhelp later established a telephone hotline for child abuse “crisis counseling,” the number of which (1-800-4-a-child) slowly began to make appearances on daytime television in the 1980s. By 1992, after several years of running the hotline, Childhelp officials had received so many calls from mothers claiming that they had tried to protect their children from abuse, only to have the children taken from their custody, that they decided to investigate the phenomenon more fully. Dubbed the “System Failure Project,” Childhelp’s investigation was straightforward: a detailed questionnaire was mailed to several thousand callers who had complained of losing custody of a child after reporting sexual abuse by the other parent. The questionnaire addressed the specific actions of the salient figures in each case: judges, law guardians, social service caseworkers, court-appointed mental health experts, and others. A full 10 percent of the questionnaires were completed and returned (a large figure for any survey, particularly one involving several pages of questions). The results showed such consistent accusations of misconduct, from hundreds of independent respondents, that Childhelp decided it was necessary to address legislators about the seriousness of the problem. Mariam Bell, Childhelp’s director of governmental affairs at the time, approached one congressional committee after another, telling lawmakers what her organization had found and urging them to convene a federal hearing into the issue.⁶

Thus, whatever the exact proportion of family court cases involving a “backlash” against protective mothers, it is impossible to doubt that the problem is serious, widespread, and intractable. Indeed, in this book, we have attempted to go beyond numbers to identify the sociological and legal patterns that result in such outcomes—thus revealing an entrenched system that will continue to wrong allegedly abused children, and their mothers, until it is checked. It is difficult to say exactly how large, numerically, this problem is. But no one can question its gravity.

Second, we are well aware that not every father accused of sexual abuse is actually guilty. What is more, we know that as the courts operate—and must operate—even parents who are guilty of sexual abuse must sometimes remain uncorrected, because of the absence of acceptable proof. We do not seek a system in which the accused is denied the presumption of innocence. Nevertheless, the all-too-common voices that complain of an assault against innocent men in the courts, that worry loudly that sex abuse charges pose a lopsided threat to the accused—with the inevitable corollary that such charges must be received with skepticism—are seriously wrong. Public fears of a “witch hunt” against fathers are not borne out by the facts. The existing literature clearly establishes that false or malicious accusations of sexual abuse, even in custody litigation, are not at all common. Dziech and Schudson (1989) point to several sources—Thoennes, Pearson, and Tjaden (1988), Quinn (1988), Berliner (1988), and Corwin, Berliner, Goodman, Goodwin, and White (1987)—as examples of well-respected studies showing that “even in family courts, false allegations [of sexual abuse] remain rare [M]ost . . . are substantiated” (p. 204). More recent empirical studies, as well as critical analyses of the published research, confirm these findings (Denike, Huang, and Kachuk 1998; Faller, Corwin, and Olafson 1993; Faller and DeVoe 1995; McDonald 1998; Thoennes and Tjaden 1990).

Nor is it true that sex abuse charges must be met with judicial resistance because such accusations are all too easily made and all too readily endorsed by credulous psychologists. Again, the professional literature belies this claim. The exact opposite seems more likely to be the case: experts often fail to diagnose abuse when it has actually occurred. In a 1992 article in the *Journal of Interpersonal Violence*, psychologists Lawson and Chaffin stressed the difficulty of obtaining a disclosure from an abused child. Lawson and Chaffin interviewed twenty-eight children, ranging from three-year-olds to adolescents, and found that more than half (57 percent) of those with sexually transmitted diseases did not re-

port having been sexually abused during the initial interview.⁷ What is more, even when credible evidence supports a sex abuse charge, there is no reason to believe it will help the legal position of the mother who makes it. For example, an ominous 1995 study by K. C. Faller and E. DeVoe at the University of Michigan found that forty mothers concerned about possible sexual abuse of their children had incurred “negative sanctions” from a court of law, which included being jailed, losing custody (to the alleged offender, to a relative, or to foster parents), losing some or all visitation rights, being ordered not to report alleged abuse again to the court (or to child protective services or the police), and being barred from taking the child to a doctor or a therapist because of sex abuse concerns. Disturbingly, the researchers found that the parents who had received such punitive measures had actually scored higher on a composite scale of likelihood of sexual abuse—a calculation of the likelihood that their child had been abused, taking into account such factors as the existence of medical evidence—than those parents who had not received such “sanctions.”⁸

It follows that the sufferings of protective parents in family courts cannot be explained away with pat answers. To understand what is happening, one must delve into the culture of the family courts, carefully documenting what occurs, and then explaining how such acts fit within a framework that makes sense to the system’s practitioners—although to anyone else they look like sheer madness.

That is the purpose of this book.

As the reader will find, there is no shortage of madness to discuss. Family courts can punish protective mothers in a bewildering variety of ways. They can, and often do, transfer custody of the allegedly abused child to the parent accused of abusing him or her. In fact, some judges go further, forbidding mothers to see their children more than a few hours a month, and even then only under strict supervision. In some cases, a mother’s visits have been suspended indefinitely because she suspected sexual abuse. Judges have been known to ban telephone

calls, letters, and e-mails between mother and child. In one California case, a mother was criticized by a family court judge for waving to her children when she saw them in another car on the highway.

Hand in hand with family court madness is a growing pattern of parental mutiny—a refusal by protective parents to accept the procedures or orders of courts whose logic they can no longer comprehend. Faced with judicial rulings that seem to them contrary to the most basic parental instincts and values, they have begun to rebel. In defiance of family court orders they believe put their children at risk, they litigate furiously, take their stories to the press, go on hunger strikes, or turn fugitive with their children with the help of a modern-day “Underground Railroad.”

Like judicial madness, parental rebellion against the family courts has taken many forms. Protective mothers have organized grassroots groups throughout the country—in New York, Ohio, Michigan, Georgia, North Carolina, Washington, and California. The groups monitor court cases, hold candlelight vigils, and in some cases actively support the Underground Railroad that hides mothers who have gone on the run with their children.

Some mothers have pursued legislative reform, becoming unpaid activists. They offer lawmakers and administrators a grim look into the family courts. In response, a few legislators have become champions of protective mother causes. Some have actually drafted legislation on the subject, although little of it has reached the statute books. In his book *In Defense of Public Order* (1961), political theorist Harold Lasswell has argued that “the history of legislation often shows that pressure groups . . . are developed long before an issue becomes a burning question on the calendar of the Congress or state legislatures.”⁹ This is clearly true for the fighting protective parents.

Our goal in this book is to provide a thorough picture of the infestation of the family courts by a special form of judicial madness, and to illustrate its causes and its consequences. We will show how family

court judges and law guardians, child welfare workers, court-appointed mental health experts, visitation supervisors, and others have created a system that all too often betrays its own principles. We will also discuss some practical reforms that can help to redirect the system toward healthier goals.

It should be stressed that our study of the backlash against mothers by the family courts is an empirical analysis, concentrating on how more than why. That is, we have avoided speculation as to the underlying psychological or historical forces that may cause family court personnel to react so violently when mothers accuse fathers of child sexual abuse. This is not to say that some writers, aware of the same phenomenon, have not attempted this. One attempt in particular, the theory put forth by the feminist writer Louise Armstrong, deserves mention here as probably the best known.

Armstrong argues that charges of sexual abuse provoke such a hostile response from family courts because they pose a threat to the inherent patriarchal structure of the family. In *Rocking the Cradle of Sexual Politics: What Happened When Women Said Incest* (1994), Armstrong writes that fathers accused of sexual abuse have answered such charges with “a political war, a war to safeguard their rights.” And she adds that men are winning the war: charges of sexual abuse have left women “vulnerable to charges of hysteria or vindictiveness,” whereas “in men sheer rage can be taken as reasonable outrage, for righteous indignation: for a sign that their circumstance is indeed demanding of remedy” (p. 138).

Such a theory is, of course, extremely difficult to prove. It is clear that women’s greater aggressiveness in domestic litigation has inspired the creation of “fathers’ rights” groups (the activities of which are noted in Chapter 1) and that some of these organizations have agitated for a return to “biblical” patriarchal rights. But this extreme is a fringe phenomenon. Our research has shown that male judges and social workers have no monopoly on hostility to sex abuse charges that women level at men. The same backlash can be observed whether the family

court personnel are predominantly male or female, liberal or conservative, religious or agnostic. We have chosen, therefore, to concentrate on methods that dissect family court madness as an institutional phenomenon, describing what the system clearly is—we are less concerned with inevitably more debatable attempts to reveal the madness's ultimate source.

A word about our research methods is certainly in order here. As previously noted, it is impossible to undertake a large-scale, random review of family court case files since these are not available to the public. However, we have been as thorough as circumstances permit. The research for this book spans twenty years and states all across the United States. Cases were analyzed longitudinally over all or most of their litigation history, including appellate review when applicable. Other accessible and relevant sources were also examined: reports of statewide judicial conduct commissions and gender-bias task forces; published case digests of decisions; and testimonial records of state and federal public hearings. We interviewed judges, private attorneys, law guardians, social workers, and mental health experts. Litigants were interviewed on multiple occasions over extended periods of time. On a few occasions, we were able to observe videotapes of trials.

To enhance this book's analysis of family courts, we have employed a form of sociological inquiry known as ethnomethodology. Using this approach, we sought to discover, describe, and analyze the collaborative ways in which "social interactants" in the family courts accomplish the situated production of social order in their day-to-day activities. For example, this book attempts to explain how judges, as members of a family court "culture," *methodically*¹⁰ re-create, on each occasion that they rule on the issues before them, the family court entity itself as a socially organized system. In developing this analysis, we reviewed the existing ethnomethodological studies of courts and court processes (Atkinson 1979; Atkinson and Drew 1979; Drew 1992; Holstein 1983, 1988; Holstein and Gubrium 1995; Komter 1995, 1998; Lynch 1997; Matoesian

1993; Maynard 1984; Meehan 1997; Pollner 1979; Travers and Manzo 1997; Watson 1990, 1997), although none of these was directed at the study of the family court institution *per se*.

One particularly important feature of our case research is our emphasis on studying the progress of a single case over time. Judicial madness often follows an evolutionary process. As a bitterly contested case progresses, rulings may become increasingly bizarre. As that happens, madness may sometimes be glimpsed merely by reading the court record as it unfolds over time. For example, a Georgia family court judge, whose ruling on a child neglect question that had caused two young children to be placed in foster care was reversed on appeal as “not supported by the appropriate considerations and findings of fact,”¹¹ reportedly insisted to the litigants that the appellate judges’ order would not affect him, saying, “There’s nothing they can do to me; I’m bullet proof!”

Parental “mutiny,” likewise, is an evolutionary process. Some parents who have never before participated in a political protest begin to challenge the system after being caught up in it and then develop, step by step, into ardent activists. Some parents choose a more radical path. After protracted court proceedings, in which (they believe) issues of child safety are being dangerously mishandled, these parents defy court orders outright. They become either fugitives or prisoners.

One other comment seems appropriate here. As we have written, this book is an objective study, presenting objective data. But objectivity is not the same as indifference. Throughout this book, we have been at pains to be accurate, but when the facts we reveal are outrageous, we have not minced words about them. Nor do we expect our readers to be dispassionate about what we describe, for the truth about the family courts gives the lie to some cherished American assumptions. Americans believe they are safe from arbitrary abuse of governmental power—yet child protective services, “law guardians,” and family court judges can cast aside the norms of due process when suppressing an

allegation of sexual abuse. Americans believe that constitutional protections follow them everywhere—but family courts are an exception, at least for protective parents; as one family court judge put it, “There is no First Amendment in my court.” Americans believe that sexist stereotypes have been soundly expelled from American political life—yet family courts still stigmatize mothers who make abuse allegations as “hysterical,” “vindictive,” and “hostile,” as if, in family courts, the appearance of an angry woman still scandalizes. We see no point in trying to minimize the injustice of such phenomena.

On the other hand, simply to identify the abuses perpetrated by the family court system is not enough. One must also try to understand how they arise, how they become part of an institutional phenomenon—and we have devoted considerable effort to this question. Finally, one must consider how the system can be reformed. And we address that issue as well.

This book is divided into three parts. The first gives an overview of family court malfunction and the parental mutiny that results from it. We outline the madness that has infected the family courts and describe the new legal landscape that has helped make the madness possible. We show how the system has reacted—or rather, failed to react—to severe criticism from commentators, newspapers, and even legislators. We also explain the roles that judges, lawyers, and other official “auxiliaries” play in the family court process.

For example, one important modern development is the increased role of Child Protective Services (CPS) agencies, whose workers have formulated their own criteria for determining who is a fit parent. In many cases, CPS workers have charged mothers with child neglect solely on the strength of a claim that these mothers “brainwashed” their children into believing they had been sexually abused.

Corresponding to this new legal landscape is a new sort of parental rebellion, and we describe this, too, including the formation of a new “Underground Railroad” for mothers of allegedly abused children and

the women who have risked their freedom to lead it.

The book's second part presents our observations in greater depth. First, we discuss in some detail the history and applications of ethnomethodologists' approach to sociological inquiry, and demonstrate how this approach can be applied to the study of the family courts. Next, we present detailed observations of the abuse of judicial powers in family courts—both the kinds of abuse and reasons they seem to occur. We discuss the function of “law guardians,” lawyers intended to advocate solely for the welfare of children in abuse cases who all too often have other agendas. We discuss in depth the behavior of child protective services agencies and how they, too, often fail to protect the children they exist to protect. We also chart the evolution of controversial mental health theories that have been given great evidentiary weight in the family courts. These theories—with names such as “Malicious Mother Syndrome” (MMS) and “Parental Alienation Syndrome” (PAS)—are unique to family litigation and seem to have been created specifically for use in counterattacking abuse allegations in court. Finally, we treat in detail the behavior of mothers who rebel in various ways against the system and the effects on them of the courts' violent disruption of their family life.

The third, and last, part of this book discusses possible ways of revamping the system. In so doing, we examine what is required to “re-birth” the system, starting with a radical change in the beliefs that drive it. In addition, we examine a number of legislative proposals that have been introduced in New York, California, and Texas with the aim of improving the family courts. We add to these existing proposals a number of suggested reforms to redress particular shortcomings of the system that we describe in this book. Our suggestions are aimed not only at judges but also at law guardians and social workers, who are an integral part of the system.

The full significance and impact of the failures and abuses this book describes will only be clearly seen many years from now. But even now it

is possible to document how a court system designed to protect families has been tearing too many children and innocent mothers apart.